

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
DEVON McFARLANE,

Plaintiff,

-against-

SUMMONS

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, P.O. FRANKLIN PEREZ and
OFFICERS JOHN AND JAMES DOE, names being
fictitious and meant to designate additional offending
officers presently unknowable by Plaintiff,
Defendants.

The basis of venue is:
CPLR 504 (3)

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

May 31, 2018


By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

P.O. Franklin Perez, Shield No. 31865
41st Precinct, 1035 Longwood Avenue, Bronx NY 10459

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DEVON McFARLANE,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. FRANKLIN PEREZ and
OFFICERS JOHN AND JAMES DOE, names being
fictitious and meant to designate additional offending
officers presently unknowable by Plaintiff,

Defendants.
-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF DEVON McFARLANE

1. At the time of the commencement of this action, Plaintiff DEVON McFARLANE
was and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and
State of New York.

3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about March 18, 2017, P.O. FRANKLIN PEREZ was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about March 18, 2017, at approximately 1 A.M., P.O. FRANKLIN PEREZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about March 18, 2017, OFFICERS JOHN AND/OR JAMES DOE, whose actual names are presently unknowable by Plaintiff but necessarily and exclusively known by defendants by virtue of their involvement with the arrest and prosecution of Plaintiff, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
8. That on and about March 18, 2017 at approximately 1 A.M., OFFICERS JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officers, and under the color of law.

9. That on or about March 18, 2017 at approximately 1 A.M., at or near the intersection of Westchester Avenue and Prospect Avenue Avenue, Bronx, New York, the plaintiff DEVON McFARLANE was improperly arrested, and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest or confine DEVON McFARLANE.

10. That at the above time and place, plaintiff DEVON McFARLANE was a rear seated passenger of an automobile that was stopped by the defendants without any reasonable suspicion that a crime had been or was about to be committed.

11. That at the above time and place, the defendants stopped the automobile that plaintiff was a passenger in due to the fact that the automobile was a late model automobile being operated by a young male of a minority population.

12. That the defendants, upon opening the locked glove boxed compartment of said automobile claimed, without basis in law or fact, that plaintiff, a rear seated passenger, was in possession of items allegedly found inside said locked glove boxed compartment.

13. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

14. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement was thereby caused freight, shock, emotional distress and physical consequences.

15. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

16. That the defendants P.O. FRANKLIN PEREZ and/or OFFICERS JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution lacking in probable cause that defendants had no reasonable expectation would succeed.

17. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny him and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

18. That all criminal charges brought against plaintiff, which were brought under docket number 2017BX011529 in the Bronx County Supreme Court Criminal Division regarding the incidents of March 18, 2017, were dismissed by the Honorable Shari Ruth

Michels on March 23, 2017, and the criminal proceedings were terminated in plaintiff's favor.

19. That all criminal charges brought against plaintiff were begun in malice without probable cause nor a reasonable belief that the prosecution would succeed.

20. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

21. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The Plaintiff made court appearances to defend his liberty against these unjust charges after a period of approximately five days.

22. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of stopping and searching automobiles without reasonable suspicion that a crime or offense had been or was about to be committed; of arresting persons without individualized reasonable or probable cause and claiming persons were in possession of things that they could not, in fact, be in possession of nor had knowledge of, for nefarious, unlawful reasons,

including to satisfy arrest quotas, and repeatedly providing false information and testimony without reprimand to the offending officers and for nefarious purposes such a degrading, humiliating and subjugating minority males in certain communities.

23. That said illegal and unlawful automobile stops, the arrests of innocent persons without reasonable or probable cause for possession of things they could not have been in possession of and conducting of searches in public and while in custody when there is no reasonable basis to conduct such searches, are a matter of public policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances.

24. Moreover, patterns of such unlawful arrests for substances allegedly found in vehicles after an wrongful search of a vehicle stopped without reasonable suspicion of a crime having occurred is exhibited, for instance, by the wrongful stops, searches and arrests of : RENA RODRIGUEZ, RAMON RODRIGUEZ, Jr. and RAMON RODRIGUEZ, Sr. on or about March 20, 2010 at approximately 1 P.M., at or near the intersection of Unionport Avenue and Tremont Avenue, Bronx, New York; DANIEL TORRES on or

about February 16, 2010 at approximately 7 P.M., near 3073 Park Avenue, Bronx, New York and GIOVANNI RAMIRIEZ on October 22, 2010; DAVID ACABEO June 16, 2010 at approximately 9:25 P.M., at or near the corner of Marmion Avenue and East 179th Street, Bronx, New York; TRACY PIQUAN and LUIS POLANCO August 30, 2010, at approximately 8:50 P.M., at the northwest corner of Davidson Avenue and West Fordham Road Bronx, New York and GEORGE RODRIGUEZ, November 3, 2010 at approximately 3 A.M., on Featherbed Lane between Nelson Avenue and Macombs Road, Bronx, New York, GIOVANNI RAMIREZ on October 22, 2010 at or near the northeast corner of East Tremont Avenue and Waterbury Avenue, Bronx, New York and LUCILA RODRIGUEZ on January 5, 2012 at 2719 Morris Avenue, Bronx, New York and JOSE ZAMBRANA on September 13, 2013 at East 161st Street and Melrose Avenue, Bronx, New York and VLADIMIR REYES on January 16, 2014 in front of or near 1504 Sheridan Ave., Bronx. New York and April 3, 2015 at or near the location of Bruckner Expressway and Bryant Avenue, Bronx, New York and numerous others.

25. The herein above described actions and omissions, engaged in under the color of law by the defendants their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured to him by the

Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his property and person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

26. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

27. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

28. That as a result of the foregoing, the plaintiff DEVON McFARLANE was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF DEVON McFARLANE

29. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 28 as though more fully set forth herein.

30. That on or about April 21, 2017, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be

presented to the defendant CITY OF NEW YORK, by providing a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

31. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant

32. THE CITY OF NEW YOEEK conducted a General Municipal Law §50h hearing of plaintiff, and plaintiff did give testimony thereat, on August 25, 2017.

33. This action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based.

34. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

35. That on or about March 18, 2017 at approximately 1 A.M., at or near the intersection of Westchester Avenue and Prospect Avenue Avenue, Bronx, New York, the plaintiff DEVON McFARLANE was improperly arrested and confined without

knowledge of warrant, without proper authority, privilege or justification, having no reason in law or in fact to arrest or confine DEVON McFARLANE.

36. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

37. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement was thereby caused freight, shock, emotional distress and physical consequences.

38. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

39. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

40. That as a result of the foregoing, the plaintiff DEVON McFARLANE was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF DEVON McFARLANE

41. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 40 as though more fully set forth herein.

42. That during their aforesaid wrongful arrest, the defendants, their agents, servants and/or employees did forcibly and unlawfully restrain Plaintiff, and did thereby offend Plaintiff with unwanted touchings, which constituted assaults and battery upon Plaintiff.

43. As a result of the aforesaid assaults and battery, Plaintiff received injuries with accompanying physical and emotional pain and suffering; that the Plaintiff was made, still are and will continue to be sick, sore and sustained other injuries, both internal and external; that it was necessary and will be so in the future, to care for and render, treatment and attention of the Plaintiff, and that Plaintiff were and in the future will be prevented from attending to Plaintiff's usual vocation and avocations and were otherwise damaged and injured.

44. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

45. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

46. That as a result of the foregoing, the Plaintiff was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF DEVON McFARLANE

47. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 46 as though more fully set forth herein.

48. That the defendants P.O. FRANKLIN PEREZ and/or OFFICERS JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution that defendants had no reasonable expectation would succeed.

49. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny him and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

50. That all criminal charges brought against plaintiff, which were brought under docket number 2017BX011529 in the Bronx County Supreme Court Criminal Division regarding the incidents of March 18, 2017, were dismissed by the Honorable Shari Ruth Michels on March 23, 2017, and the criminal proceedings were terminated in plaintiff's favor.

51. That all criminal charges brought against plaintiff were begun in malice without probable cause nor a reasonable belief that the prosecution would succeed.

52. That by reason of the aforementioned, the Defendants' actions amounted to malicious prosecution.

53. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured.

54. The plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately five days.

55. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

56. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

57. That as a result of the foregoing, the Plaintiff DEVON McFARLANE was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF DEVON McFARLANE

58. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 57 as though more fully set forth herein.

59. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise, investigate, discipline and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

60. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper conducting automobile stops and subsequent arrests of individuals.

61. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiff DEVON McFARLANE was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the

purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

62. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

63. That as a result of the foregoing, the plaintiff DEVON McFARLANE was damaged in a sum which exceeds the jurisdiction of all lower Courts.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second, Third, Fourth and Fifth Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
May 31, 2018


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
DEVON McFARLANE

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

P.O. Franklin Perez, Shield No. 31865
41st Precinct, 1035 Longwood Avenue, Bronx NY 10459

PLAINTIFF'S VERIFICATION

DEVON McFARLANE affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


DEVON McFARLANE

*Sworn Before me
this 31st day of May 2018*



Notary Public

JONATHAN LOUIS GLEIT
Notary Public, State of NY
No. 31-4979332
Qualified in Westchester County
Commission Expires March 25, 2019